



RVSR JOB AID

Governing Provisions & Rulings for PTSD Claims

This reference guide contains the predominant provisions and rulings that RVSRs need to know and consider when determining service connection for Posttraumatic Stress Disorder (PTSD) compensation claims.

Note: This is a quick reference guide for easy use during the review of a PTSD claim. See the actual provision or court ruling for more detailed information.

All PTSD Claims

Table 1: Provisions for All PTSD Claims

Law / Regulation / Policy	Description
38 CFR 3.304(f)	Three requirements for service connection for all PTSD claims: 1. Diagnosis of PTSD: Evidence must show a diagnosis of PTSD in accordance with 38 CFR 4.125(a). 2. In-service traumatic stressor: Claim must have credible supporting evidence that the in-service traumatic stressor occurred. 1. Nexus: A nexus (link) must be established between current symptoms and an in-service traumatic stressor.
38 CFR 4.125(a)	The regulation requires that the diagnosis of mental disorders conforms to DSM-5. If the diagnosis of a mental disorder does not conform to DSM-5 or is not supported by the findings on the examination report, the rating agency shall return the report to the examiner to substantiate the diagnosis.
38 CFR 3.304(f)(1)	Veteran's lay testimony alone may establish the occurrence of an in-service combat stressor if: • In-service diagnosis of PTSD is present. • Evidence is consistent with the circumstances, conditions, or hardships of such service. • Contradictory evidence is absent.



RVSR JOB AID

Combat PTSD

Table 2: Provisions & Rulings for Combat PTSD Claims

Law / Regulation	Description
38 CFR 3.304(f)(2)	Veteran's lay testimony alone may establish the occurrence of an in-service combat stressor if: • Veteran engaged in combat with the enemy. • In-service traumatic stressor is consistent with the circumstances, conditions, or hardships of the Veteran's service. • Clear and contradictory evidence is absent.
38 CFR 3.304(f)(3)	Veteran's lay testimony alone may establish the occurrence of an in-service traumatic stressor if it is related to the Veteran's fear of hostile military or terrorist activity, and if: • VA psychiatrist or psychologist (or contract equivalent) confirms that in-service stressor supports PTSD diagnosis and medical nexus to current symptoms. • In-service traumatic stressor is consistent with the circumstances, conditions, or hardships of the Veteran's service. • Clear and contradictory evidence is absent. "Fear of hostile military or terrorist activity": a Veteran witnessed, or was confronted with, an event or circumstances that involved actual or threatened death or serious injury, or a threat to physical integrity, and the Veteran's response to the event or circumstance involved a psychological or psycho-physiological state of fear, helplessness, or horror.
38 CFR 3.304(f)(4)	Veteran's lay testimony alone may establish the occurrence of an in-service combat stressor if: • Veteran was a prisoner of war (POW). • In-service traumatic stressor is consistent with the circumstances, conditions, or hardships of the Veteran's service. • Clear and contradictory evidence is absent.
38 CFR 3.304(f)(5)	In cases of noncombat personal assault PTSD, secondary evidence from sources other than service records may corroborate the Veteran's claimed in-service stressor.



RVSR JOB AID

Law / Regulation	Description
Veterans Affairs Opinion, General Counsel, Precedent (VAOPGCPREC) 12-99	This opinion was written to address how to determine whether a Veteran "engaged in combat with the enemy" for purposes of 38 USC 1154(b). Several key points were outlined in the opinion: • "Engaged in combat with the enemy" means having participated in events constituting an actual fight or encounter with a military foe or hostile unit or instrumentality. • Evidentiary requirements for determining if a Veteran was engaged in combat with the enemy are to be decided on a case-by-case basis. • No statutory or regulatory limitations exist on the types of evidence that may be used in any case to support a finding that a Veteran engaged in combat with the enemy. • Defines, in greater detail, evidence that may provide satisfactory proof that a Veteran "engaged in combat with the enemy." • Evidence of a Veteran being involved in a particular operation or campaign does not automatically mean that they were engaged in combat with the enemy, as both terms refer to both combat and noncombat activities. • 38 USC 5107(b) "benefit-of-the-doubt" rule still applies. (See M21-1 III.iv.4.H – Mental Disorders, for related information)
Sizemore v. Principi (2004)	Veteran does not have to receive enemy fire to qualify as being engaged in enemy combat; attacking or defending an attack is sufficient to qualify.



RVSR JOB AID

Noncombat Personal Assault PTSD

Table 3: Provisions & Rulings for Noncombat Personal Assault PTSD Claims

Law / Regulation	Description
Patton v. West, 1999	VA Regional Offices have heightened obligations to assist in noncombat personal assault PTSD claims. Secondary evidence for noncombat personal assault PTSD claims may need interpretation in relation to a medical diagnosis by a clinician, especially if it involves behavior changes. (See M21-1 III.iv.4.H – Mental Disorders, for related information)